

25VECV06080 25VECV06080

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 25VECV06080 Hearing Date: June 29, 2026 Dept: I

25VECV06080 ALEXANDRA MERCEDES DUFFEY vs

VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION

June 29, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel Further

Discovery

I.

Background

On October 23, 2025, Plaintiff Alexandra

Mercedes Duffey ("Plaintiff") filed a complaint against Volkswagen Group of America, Inc. ("Defendant") and Does 1 through 10 alleging three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and (3) violation of Song-Beverly Act Section 1793.2.

On May 7, 2026, Plaintiff filed the

instant motion to compel Defendant's further responses to her Requests for Production of Documents, Set One.

On June 15, 2026, Defendant filed its opposition.

On June 22, 2026, Plaintiff filed her

reply.

II. Motion

to Compel Further Discovery

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Cal. Code of Civ. Proc. § 2031.310(a).)

Analysis

A motion to compel further responses shall be accompanied by a meet and confer declaration. (CCP § 2031.310(b).) On February 18, 2026, the parties' counsel met and conferred telephonically and Defendant agreed to serve further responses by March 18, 2026. (Hozven Decl. at ¶ 23.) On March 18, 2026, Defendant requested a further extension until April 17, 2026, which Plaintiff granted. (Id. at ¶ 24.) As of the date of this motion, Defendant still had not served substantive responses to Plaintiff's discovery request. (Ibid.) Accordingly, Plaintiff satisfies the meet and confer requirement of CCP § 2031.310(b).

Plaintiff moves

to compel Defendant's further responses to Requests for Production of Documents, Set One, Nos. 1-31. (See Separate Statement.) These requests pertain to, inter alia, Defendant's warranties, policies, and procedures regarding the Subject Vehicle and repurchase or repair of the Subject Vehicle pursuant to the Song-Beverly Act. (Ibid.) Defendant largely provided boilerplate objections. (Ibid.)

In opposition,

Defendant argues that it is “presently finalizing supplemental responses and producing responsive, non-privileged documents and anticipates serving those materials prior to the hearing . . . Accordingly, the Motion will either be rendered moot or substantially narrowed.” (Motion at 2:24-3:1.) Defendant also argues that it “should not be required to waive objections that remain applicable, including objections based upon attorney-client privilege, attorney work product, privacy rights, overbreadth, proportionality, undue burden, and

other legally recognized protections.” (Id. at 6:22-26.)

In reply,

Plaintiff argues that Defendant’s June 18, 2026, further responses still fail to cure the applicable defects. (Reply at 2:13-23.) “[Defendant] continues to rely on improper objections, vague limiting language, and unsupported privilege assertions without providing a proper privilege log or sufficient factual information to allow Plaintiff to evaluate whether responsive documents are being withheld. Worse, Defendant still has not produced core documents directly relevant to Plaintiff’s claims . . .” (Ibid.)(emphasis removed.)

The Court

reviews Defendant’s supplemental responses and agrees with Plaintiff. Plaintiff demonstrates good cause for her requests because this evidence is relevant to show that Defendant was aware, prior to Plaintiff’s purchase, of defects in a similar make and vehicle model and was either “unwilling or unable” to fix such defects. (Santana v. FCA US, LLC (2020) 56 Cal.App.4th 334, 346.) Additionally, the Court notes that, on June 24, 2026, the parties filed a joint stipulation and protective order pertaining to some of the allegedly privileged information. The Court has signed the stipulation and protective order.

III. Conclusion

Based on the foregoing, Plaintiff’s motion to compel further responses is GRANTED.

Defendant is to produce substantive, code-compliant responses, without objections, to Plaintiff’s Requests for Production of Documents, Set One within 30 days of this Order.

Moving party to give notice.